## C008691-082325 - County

### Message History (7)

On 9/19/2025 1:18:18 PM, Washington County Public Records Center wrote:

**Subject:** [Records Center] County :: C008691-082325
**Body:**

RE: PUBLIC RECORDS REQUEST of August 23, 2025., Reference # C008691-082325.

Dear Ashle Penn,

Washington County, OR received a public information request from you on August 23, 2025. Your request mentioned:

**"Dear Records Officer:**

**Pursuant to Oregon's Public Records Law, ORS 192.311–192.478, I respectfully request the following records relating to any layoffs within Washington County Community Corrections for the period November 1, 2024, through the present:**

**Layoff Notices: Copies of all written Layoff Notices issued to employees pursuant to county policy, including the reasons for layoff and any options offered (demotion in lieu of layoff, temporary employment opportunities, redeployment program information).**

**Basis for Layoffs: All documents constituting the basis for, or analysis leading to, the decision to implement layoffs, including but not limited to budget analyses, staffing studies, organizational charts, policy memoranda, correspondence with Human Resources, or directives from the Appointing Authority.**

**Classification Seniority List(s): Any classification seniority list(s) prepared by Human Resources in connection with the layoffs. If any personal information is considered exempt under ORS 192.355, please redact that information and release the remainder (including employee names, job classifications, hire dates, and relative ranking).**

**List of Affected Employees: Records identifying employees who were ultimately laid off, including name, classification, and effective date of layoff.**

**Internal Directives and Communications: Any memoranda, emails, or other communications issued by the Appointing Authority, Human Resources, or management staff concerning the layoffs, including instructions to prepare notices or implement layoffs.**

**Fee Waiver Request**
**I request a waiver of all fees pursuant to ORS 192.324(5). Disclosure of these records will significantly contribute to the public's understanding of how Washington County allocates public funds, manages staffing within Community Corrections, and complies with legal obligations concerning employee rights during layoffs. I seek these records for non-commercial purposes and intend to make the information publicly available.**



**Redactions / Partial Denials**
**If you determine that portions of any requested records are exempt, please redact only those specific portions and release the balance pursuant to ORS 192.338. If any record is withheld in full, please provide a written explanation citing the statutory basis for denial as required by ORS 192.345–192.355.**

**Please confirm receipt of this request and provide an estimated date of completion."**

Washington County, OR is a custodian of the requested records but is asserting an exemption from disclosure pursuant to Oregon law for all of the records. These laws include:

192.355(2) – Information of a Personal Nature

192.355(3) – Personal Contact Information of Public Employees

If you disagree with the County's interpretation of ORS Chapter 192, including the applicability of one or more exemptions to the requested records, you may seek a review of this decision as provided in Oregon Revised Statutes 192.311 to 192.431. The County retains public records in accordance with applicable retention schedule as provided by the Oregon Secretary of State's Office pursuant to OAR Chapter 166, Division 150.

Sincerely,

Aaron Mendes

Human Resources

On 9/19/2025 1:15:21 PM, Washington County Public Records Center wrote:

**Subject:** [Records Center] County :: C008691-082325
**Body:**
RE: PUBLIC RECORDS REQUEST of 8/23/2025, Reference # C008691-082325

Dear Ashle Penn,

The County Administrator has reviewed your request and has determined NOT to waive the associated fees. The waiver has been denied for the following reason(s):

a) the opportunity costs to the County, and by extension the taxpayers, of employees in Community Corrections and County Counsel being interrupted and their labor re-directed to responding to records requests
b) the rights the requester has to seek records through the discovery phase of potential civil or criminal litigation and
c) evidence the County has in its possession suggesting the requester is interested in using the requested records to provide legal assistance to the <<convicted>> perpetrator of the crimes she is the victim of.

If you believe your request for a fee waiver was unreasonably denied, you may file an appeal to the Attorney General or District Attorney pursuant to ORS 192.324 (6).

Sincerely,

Aaron Mendes

Human Resources



On 8/26/2025 7:33:32 AM, Washington County Public Records Center wrote:

**Subject:** [Records Center] County :: C008691-082325
**Body:**

RE: PUBLIC RECORDS REQUEST of August 23, 2025., Reference # C008691-082325.

Dear Ashle Penn,

Correct, I was determining if this would be processed by our department or if it should have landed with HR. Human Resources is the correct department to direct this request to. I will be transferring this request for them to process.

Sincerely,

Heather Brown
Management Analyst I
Community Corrections

If you disagree with the County's interpretation of ORS Chapter 192, including the applicability of one or more exemptions to the requested records, you may seek a review of this decision as provided in Oregon Revised Statutes 192.311 to 192.431. The County retains public records in accordance with applicable retention schedule as provided by the Oregon Secretary of State's Office pursuant to OAR Chapter 166, Division 150.

On 8/25/2025 3:47:35 PM, Ashle Penn wrote:

Thank you for the August 23, 2025 acknowledgment of the public records request concerning layoffs within Washington County Community Corrections. Appreciation is extended for the efforts of your office in processing the request and locating responsive records.

The acknowledgment response indicated some uncertainty with respect to custodianship. To assist in resolving that point, reference is made to Washington County Administrative Policy, Article 14 (Workforce Adjustment, Layoff and Recall):

Layoffs are initiated through a written request submitted by the Appointing Authority to the Chief Human Resources Officer, specifying the reasons for layoff (Sec. 14.2.3).

Human Resources is responsible for preparing and issuing Layoff Notices in accordance with the workforce adjustment plan (Sec. 14.2.4).

Human Resources is also required to maintain the Recall List of employees affected by layoffs or demotions for a period of five years (Sec. 14.2.6).

Based on these provisions, it would appear that Washington County Human Resources, or in some circumstances the relevant Appointing Authority, serves as custodian for the types of documents requested, including Layoff Notices, the stated basis for layoff, classification seniority lists, and Recall Lists.

This clarification is offered in the interest of supporting an efficient search and timely production of responsive records. Please advise if additional detail would be useful in directing the request.

The provision of the requested records is appreciated.

On 8/25/2025 11:15:27 AM, Washington County Public Records Center wrote:

**Subject:** [Records Center] County :: C008691-082325
**Body:**

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Dear Ashle Penn:

Thank you for your interest in public records of Washington County, OR. Your request was received in this office on 8/23/2025 and given the reference number C008691-082325 for tracking purposes.



We understand that you are requesting: Dear Records Officer:

Pursuant to Oregon's Public Records Law, ORS 192.311–192.478, I respectfully request the following records relating to any layoffs within Washington County Community Corrections for the period November 1, 2024, through the present:

Layoff Notices: Copies of all written Layoff Notices issued to employees pursuant to county policy, including the reasons for layoff and any options offered (demotion in lieu of layoff, temporary employment opportunities, redeployment program information).

Basis for Layoffs: All documents constituting the basis for, or analysis leading to, the decision to implement layoffs, including but not limited to budget analyses, staffing studies, organizational charts, policy memoranda, correspondence with Human Resources, or directives from the Appointing Authority.

Classification Seniority List(s): Any classification seniority list(s) prepared by Human Resources in connection with the layoffs. If any personal information is considered exempt under ORS 192.355, please redact that information and release the remainder (including employee names, job classifications, hire dates, and relative ranking).

List of Affected Employees: Records identifying employees who were ultimately laid off, including name, classification, and effective date of layoff.

Internal Directives and Communications: Any memoranda, emails, or other communications issued by the Appointing Authority, Human Resources, or management staff concerning the layoffs, including instructions to prepare notices or implement layoffs.

Fee Waiver Request
I request a waiver of all fees pursuant to ORS 192.324(5). Disclosure of these records will significantly contribute to the public's understanding of how Washington County allocates public funds, manages staffing within Community Corrections, and complies with legal obligations concerning employee rights during layoffs. I seek these records for non-commercial purposes and intend to make the information publicly available.

Redactions / Partial Denials
If you determine that portions of any requested records are exempt, please redact only those specific portions and release the balance pursuant to ORS 192.338. If any record is withheld in full, please provide a written explanation citing the statutory basis for denial as required by ORS 192.345–192.355.

Please confirm receipt of this request and provide an estimated date of completion.

In accordance with Oregon Public Records law (ORS 192.324(2)), the County is acknowledging receipt of your written request for records. Having reviewed your request, the County is able to inform you that:

The County is uncertain whether it is the custodian of the records. We will research your request and provide a response soon.

Again, thank you for using the Public Records Center.

Washington County, OR

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If you disagree with the County's interpretation of ORS Chapter 192, including the applicability of one or more exemptions to the requested records, you may seek a review of this decision as provided in Oregon Revised Statutes 192.311 to 192.431. The County retains public records in accordance with applicable retention schedule as provided by the Oregon Secretary of State's Office pursuant to OAR Chapter 166, Division 150.

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To monitor the progress or update this request please log into the Public Records Center

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On 8/23/2025 12:45:21 AM, Washington County Public Records Center wrote:



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Dear Ashle Penn:

Thank you for your interest in public records of Washington County, OR. Your request has been received and is being processed in accordance with the Oregon Public Records Law. Your request was received in this office on 8/23/2025 and given the reference number C008691-082325 for tracking purposes.

**Records Requested:** Dear Records Officer:

Pursuant to Oregon's Public Records Law, ORS 192.311–192.478, I respectfully request the following records relating to any layoffs within Washington County Community Corrections for the period November 1, 2024, through the present:

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contribute to the public's understanding of how Washington County allocates public funds, manages staffing within Community Corrections, and complies with legal obligations concerning employee rights during layoffs. I seek these records for non-commercial purposes and intend to make the information publicly available.

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Please confirm receipt of this request and provide an estimated date of completion.

Your request will be forwarded to the relevant department(s) to locate the information you seek and to determine the volume and any costs associated with satisfying your request. You will be contacted about the availability and/or provided with copies of the records in question.

PLEASE NOTE: The Oregon Public Records Law does not require a governmental body to create new information, to do legal research, or to answer questions. In addition, State and federal law prohibits disclosure of certain records and permits certain public records be withheld from disclosure.

You can monitor the progress of your request at the link below and you'll receive an email when your request has been completed. Again, thank you for using the Public Records Center.

Washington County, OR

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To monitor the progress or update this request please log into the Public Records Center



On 8/23/2025 12:45:17 AM, Ashle Penn wrote:

Request Created on Public Portal